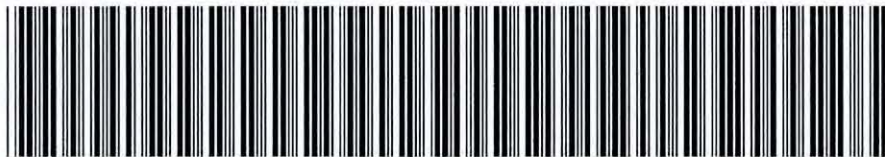


EWR D&I ANNOTATION



FAN-000001L072001DP80-8203

Artemis # : 000001L072001DP80

Record Created Date : 09/21/2011

Printed Date : 09/21/2011

Description : DI07-087 SEQUENCE ID 80: A SERVICE REQUEST DETAIL LOG FROM GENERAL MOTORS LLC MAKES THE ALLEGATION THAT A 2005 CHEVROLET COBALT IS POTENTIALLY DANGEROUS DUE TO AN AIRBAG NON-DEPLOYMENT DURING A ROLLOVER. THE LOG PROVIDES A BREIF POLICE REPORT WHICH RECOUNTS THE INCIDENT STATING THAT THE VEHICLE WAS TRAVELING ON A ROAD WITH A 65MPH SPEED LIMIT DURING THE EARLY HOURS OF THE MORNING, 7:20AM. THE DRIVER OF THE VEHICLE SWERVED TO AVOID A LARGE PIECE OF CONCRETE THAT WAS IN THE MIDDLE OF THE ROAD WHICH LED TO THE VEHICLE GOING OFFROAD, AND ROLLING OVER A TOTAL OF 3 TIMES. DOCUMENTS PROVIDED FOR THE SEQUENCE STATE THAT NEITHER DRIVER OR PASSENGER WAS BELTED DURING THE TIME OF THE INCIDENT. AS A RESULT, BOTH WERE EJECTED FROM THE VEHICLE DURING THE ROLL OVER. INJURIES SUSTAINED TO THE DRIVER PROVED TO BE FATAL. THE DOCUMENTATION ALSO CLAIMS THAT THE COBALT WAS TAKEN IN FOR AN AIRBAG RECALL 1 WEEK PRIOR TO THE ACCIDENT TAKING PLACE. FROM A SEARCH NO REACLLS OR PURSUITS WERE FOUND RELATING THIS VEHICLE TO THE ALLEGED SAFETY DEFECT. FROM A SEARCH OF VOQS, 10 REPORTS WERE FOUND WHICH MENTION ACCIDENTS INVOLVING THE VEHICLE IN QUESTION AND AIR BAG NON DEPLOYMENTS. TWO OTHER REPORTS ALLEGED TO FATALIES DUE TO AN AIRBAG NON-DEPLOYMENT. FROM A SEARCH OF FIELD REPORTS, 17 REPORTS WERE FOUND THAT MENTIONED AIR BAG NON DEPLOYMENTS. FROM A SEARCH OF TSBS, 3 WERE FOUND RELATING TO AIRBAG INDICATOR LIGHTS BEING ILLUMINATED. *NO

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE
Washington, DC 20590

OCT - 4 2007

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-087

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 2nd quarter of 2007. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents
For Reporting Category: L
For the following Sequence IDs: 20, 37, 64, 79, 80, 87, 127, 132, 154, 203, 211, 252, 253, 288, 306, 353

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **October 26, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in cursive script, appearing to read "Christina Morgan".

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS CORPORATION

Vehicle Structure & Safety Integration

November 8, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217ph
DI07-087

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated October 4, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 2nd quarter of 2007.

GM's response is comprised of 17 disks for the incidents that are the subject of DI07-087.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 288 224036947 - 632657 and 2006 Chevrolet TrailBlazer 360. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 288 224036947 - 632657_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the disk are as follows:

DI07-087
288 224036947 - 632657
2006 CHEVROLET TRAILBLAZER 360

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

2. Provide a copy of the Police Accident Report.

See attached document and photographs on CD.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

288 224036947 - 632657_01_001 - is the first document responsive to Inquiry no. 1.
288 224036947 - 632657_02_001 - is the first document responsive to Inquiry no. 2

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-087 Response.doc

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incidents that are the subject of DI07-087, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed disk for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(16 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
20	5GADV33L15D [REDACTED]	NISM
37	1G6KD54Y14U [REDACTED]	NISM
64	KL1TG56667B [REDACTED]	NISM
79	1G1AK52F857 [REDACTED]	NISM
80	1G1AK12F457 [REDACTED]	NISM
87	1G1AK55F467 [REDACTED]	NISM
127	2G1WH52K259 [REDACTED]	NISM
132	UNKNOWN	RUMOR
154	1G1ZT51F96F [REDACTED]	LIT
203	1GCEC14X15Z [REDACTED]	NISM
211	2GCEC13V361 [REDACTED]	NISM
252	1GNEK13Z84J [REDACTED]	RUMOR
253	1GNEK13T64R [REDACTED]	LIT
288	1GNES13H462 [REDACTED]	NISM
306	1GNDV23L85D [REDACTED]	LIT
353	1GTHK39224E [REDACTED]	LIT

2. **Provide a copy of the Police Accident Report.**

Response: See attached document and photographs on CD.

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may

be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

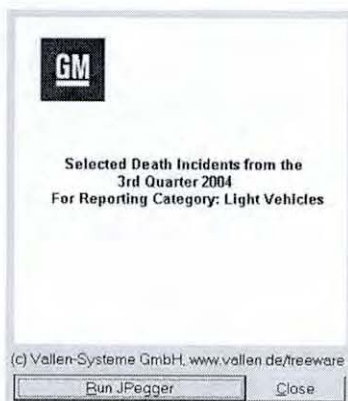
A handwritten signature in dark ink, appearing to read 'G. Kent', with a stylized flourish extending to the right.

Gay P. Kent
Director
Product Investigations

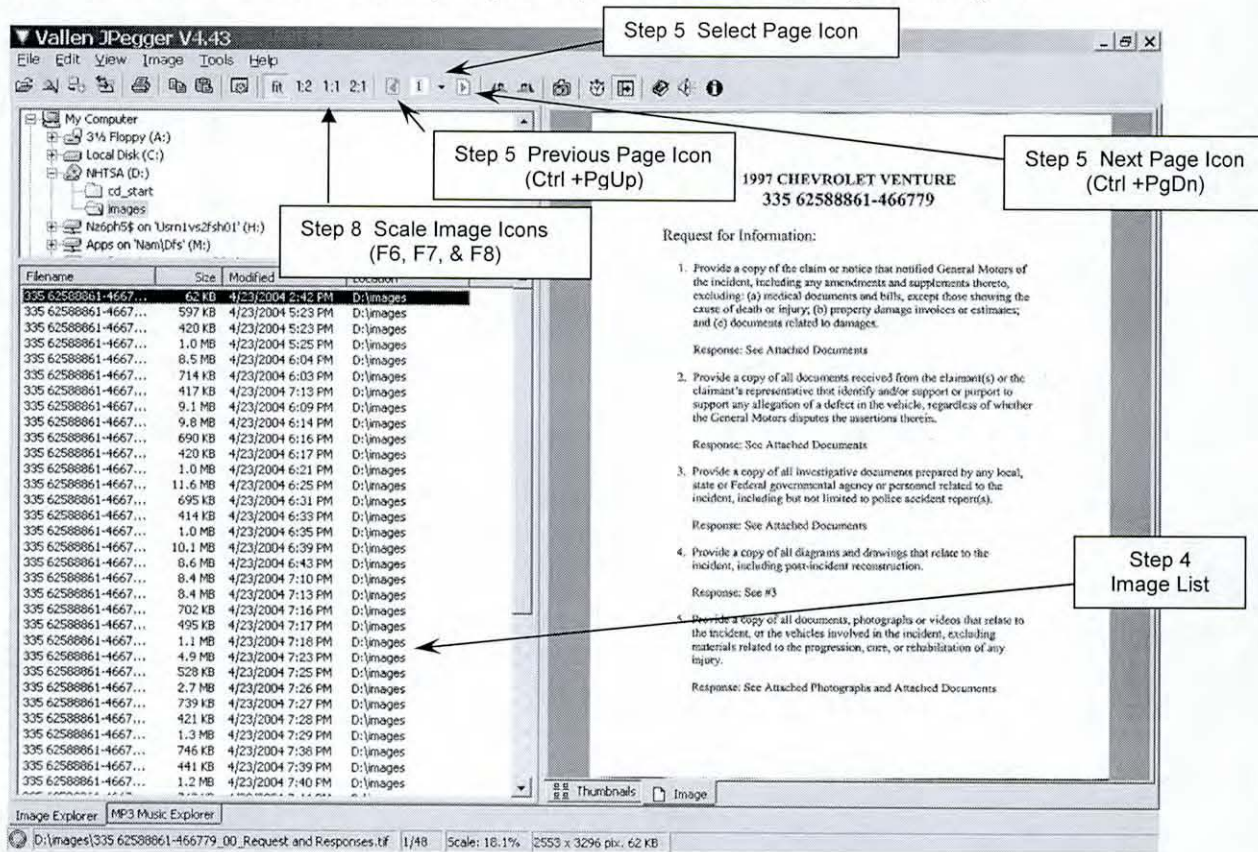
Enclosures: 17 Disks
Attachment A

Attachment A Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

The image shows a legal case cover sheet for 'CARRON V. CHEVROLET'. The form includes sections for case information, case type, and a notice. Annotations point to specific features:

- Step 7 Next File (Image)**: Points to the 'Next Image' button in the right-hand menu.
- Step 7 Next page**: Points to the 'Next page' button in the right-hand menu.
- Step 8 Scale Image**: Points to the 'Scale 100%' option in the right-hand menu.
- Step 7 Image Properties**: Points to the 'Image Properties' button at the bottom of the right-hand menu.

The cover sheet itself contains the following information:

982.2(b)(1)
 FOR COURT USE ONLY

ATTORNEY OR PARTY WITHOUT ATTORNEY (Print name, title, firm, and address)
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 FOWLER, CALIFORNIA 91766
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126

ATTORNEY FOR: PLAINTIFF'S

CASE NAME: CARRON V. CHEVROLET

CIVIL CASE COVER SHEET
☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1011)

PLEASE COMPLETE ALL FIVE (5) ITEMS BELOW

1. Check one box below for the case type that best describes this case:

Auto Tort
☒ Auto (22)
 Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Asbestos (54)
☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PIP/DWD (23)
 Non-PIP/DWD (Other) Tort
☐ Business tort/better business practice (37)
☐ Civil rights (e.g., discrimination, false arrest) (50)
☐ Defamation (e.g., slander, libel) (13)
☐ Fraud (14)
☐ Intellectual property (16)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWD tort (20)
☐ Wrongful termination (30)

Contract
☐ Other employment (15)
☐ Breach of contract/warranty (06)
☐ Collection (e.g., money owed, open book accounts) (09)
☐ Insurance coverage (18)
☐ Other contract (17)
 Real Property
☐ Eminent domain/takings condemnation (14)
☐ Wrongful eviction (28)
☐ Other real property (e.g., quiet title) (20)
 Unlawful Detainer
☐ Commercial (21)
☐ Residential (32)
☐ Drugs (34)
 Judicial Review
☐ Asset forfeiture (05)
☐ Petition for administration (11)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management.

a. ☒ Large number of separately represented parties. d. ☒ Large number of
 b. ☒ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve. e. ☐ Coordination and
 c. ☒ Substantial amount of documentary evidence. f. ☐ Substantial post

3. Type of remedies sought (check all that apply):
 a. ☒ monetary b. ☐ nonmonetary, declaratory or injunctive relief c. ☐

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULY 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836
 (Print or stamp name)

NOTICE
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (or under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1011).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 of the California Rules of Court, you must enter parties to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

Form Adopted For Mandatory Use
 Judicial Council of California
 06/23/04 (Rev. January 1, 2003)

CIVIL CASE COVER SHEET

DI07-087
80 224036916 – 632569
2005 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

632569

Service Request Detail

SR No.		Ref No.		Goodwill	No Goodwill Offered	BRC Type	N/A
Account		Site		GW SubType		Bus. Unit	BRC
Last Name		First Name		Approval	Not Initiated	Area	PAR
Daytime #		Evening #		UCC	Restraints - (SIR) - Driver Front	Sub-Area	
Address		City	New Alexandria	Involved Dir	Blaise Alexander Chevrolet Buick	Safety	Yes
State	PA	ZipCd		Source	Phone	Updated	5/9/2007 03:04:07 PM
Serial #/VIN	1G1AK12F457	Model Year	2005	Priority	Medium	License #	CHEVROL
Make	Chevrolet	Warr. Start	07/28/2005	Status	Open	Owner	RODRIGOS
Model	Cobalt	Mileage		Sub-Status		Opened	5/8/2007 10:10:45 AM
Abstract	Fatality (Airbags did not deploy, veh turned over)						
Customer Description	**Fatality** BRC PAR CASE. DO NOT ASSUME. FORWARD ALL INQUIRIES TO JOSE RODRIGUEZ EXT 21333 ***						

Pre-PAR

PAR Notifier	Incident Date/Time	Injuries	# Other Veh	# People in Veh	Road Surface	Road Cond	Fire Report#	Police Report#
Relative	4/30/2007 07:20:00 AM	Y	0	2	Concrete	Dry	n/a	F060934386
Driver Last Name	Driver First Name	Height	DOB	Disabilities				
				Deceased				
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency					
Panichelle	Ronald	(724) 668-2266	Nation Wide					
Incident Loc	union county, Williamsport, PA		Incident Desc	-Monday, april 30, 7:20am				
Component	Airbag did not deploy		Damage Desc	Total Wreck				
Vehicle Loc	With Insurance Agency (Nation Wide)		Add'l Info	DOB & DOB				
Emgcy Svc Names	n/a		Maint Loc	Grabiak Chevrolet Inc.				

PAR Detail

Collision	Non Collision	Property Damage	Thermal Evt	Spec Equip	
Vehicle Speed		Weather Condition		Prop Owner	Property Type
Last Service Date		Loc Last Service		Property Location	Prop Est Repair Cost
Veh Est Repair Cost		Spec Equip Installer		Prop Damage Description	
Primary Veh Use		Inspection Type		Inspected By	Inspection Date/Time
Veh Damage Description				Explain Other	

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Driver	None
Injury Description			Medical Rpt#	Treatment Location		Treated By
Deceased			Geisinger Medical Center, Dansville PA			
Street Address			City	State	Zip Code	

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Front Passenger	none
Injury Description			Medical Rpt#	Treatment Location		Treated By
bruised kidney, some cuts and scratches			Geisinger Medical Center, Dansville PA			
Street Address			City	State	Zip Code	

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 03:00:52 PM	RODRUOS	ESISBIQU	Escalation	ESIS - Injuries	In Progress		Assigned to ESIS
Contact Last Name		Contact First Name		Account	BAC Code		
Comments							
Fatality							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:34:13 AM	DRAHEICM	RODRUOS	Ownership Changed		Done	5/9/2007 11:34:13 AM	Service Request Ownership has changed FROM: MILLANEM TO: RODRUOS
Contact Last Name		Contact First Name		Account	BAC Code		
Comments							
Confidential Comments							

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:34 AM	DRAHEICM	RODRUOS	BRC PAR	Initial Contact- Phone	Done	5/9/2007 03:00:48 PM	Called
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:34 AM	DRAHEICM	RODRUOS	BRC PAR	Acknowledgement	Done	5/9/2007 03:00:44 PM	Called
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:34 AM	DRAHEICM	RODRUOS	BRC PAR	Initial Contact- Dealer	Done	5/9/2007 03:00:39 PM	Called
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:33 AM	DRAHEICM	RODRJOS	BRC PAR	Initial Contact-AVM	Done	5/9/2007 03:00:30 PM	Called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:33 AM	DRAHEICM	RODRJOS	Notify CRM		Done	5/9/2007 03:00:25 PM	File Assigned
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:33 AM	DRAHEICM	RODRJOS	Research		Done	5/9/2007 03:00:19 PM	Researched VIN
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/9/2007 11:32:33 AM	DRAHEICM	RODRIJOS	BRC PAR	Case Assigned	Done	5/9/2007 03:00:09 PM	Assigned File to Jose Rodriguez ext 21333
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Closing activity. Escalating case to ESIS due to Fatality.

Jose Rodriguez ATX PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/8/2007 01:03:57 PM	MILLANEM	DRAHEICM	Escalation	Initiate PAR	Done	5/9/2007 10:14:25 AM	Assigning activity to PAR QUEUE
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

CRS advised that a person from the PAR Department will contact the customer within 2 business days
Received and assigned in PAR.

Chad Draheim/ATX/Workflow PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
5/8/2007 12:54:29 PM	MILLANEM	MILLANEM	Inbound Call Third Party	Complex Request	Done	5/8/2007 01:03:53 PM	Alleged product allegation-Air bags did not deploy
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Customer states:

- airbags did not deploy, chevy cobalt
- son had been into an accident, hit a bank...
- none of the airbags deployed
- nephew was killed
- recalled airbags a week before the accident
- vehicle is with Harrisburg, Insurance company (Nation Wide, and the name of their agent is Ronald Panichella)
- Monday, april 30, 7:20am (Accident time and date)
- vehicle is headed back to driver's and and passenger's college, at union county, Williamsport
- there was something on a road and they swerved to miss it then they loss control and hit a bank and the vehicle turned over
- according to a police report, there was a piece of concrete on the highway
- the piece of concrete was a foot and a half by 6" wide
- son (), bruised kidney, some cuts and scratches
- nephew is driving, () died
- Kelley Towing, towed the vehicle to somewhere and insurance company got it and took it in there possession
- injured parties where brought in Gessinger Medical Center, Dansville PA
- wearing no seatbelts, both driver and passenger ejected...

Customer seeks:

- airbags did not deploy, something needs to looked into...the recall was fixed...
- if there is something that GM could do to compensate their loss
- if the airbags deployed, would this save the life of their nephew

CRS advice:

advised customer that their information will be forwarded to the Product Allegation Department within the BRC

Beau_Casset/Elemental_CAC/Manila

Confidential Comments

UCC Information

UCC Code	Symptom	Description
C46	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front
C48	SIR - Did Not Deploy	Restraints - (SIR) - Passenger Front

GM Vehicle Inquiry System

Summary

(b) (6)

Home - Summary - Claim History - Vehicle Build - Vehicle Component - Delivery Information - Dealer Information - Service Contract - Warranty Block - Branded Title

Help

VIN :	1G1AK12F457
-------	-------------

VEHICLE INFORMATION

Merchandising Model :		1AK37 -2005 COBALT 2-DOOR COUPE		Warranty Start Date :		07/28/2005					
BARS Order Type :		70 - RETAIL - STOCK									
Delivering Dealer :		GRABIAK CHEVROLET, INC. PO BOX 319 NEW ALEXANDRIA , PA 15670-0319 (724) 668-2231		Selling Source :		13 - CHEVROLET					
				Site Code :		13343					
				Business Associate Code :		165969					
Service Contract :		No	Branded Title :		No	Warranty Block :		No	PDI Status :		Paid

REQUIRED FIELD ACTIONS

Type	Number	Description	Posted Date	Status
RC	06217	HEAD IMPACT PROTECTION	N/A	Closed

SERVICE INFORMATIONAL ITEMS

Vehicle Has No Current Record Of Outstanding Service Information
--

ON STAR AND XM SATELLITE RADIO INFORMATION

Vehicle Has No Associated On Star or XM Radio Information.
--

APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER	07/28/2005	460 miles	07/28/2008	36460 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH	07/28/2005	460 miles	07/28/2011	100460 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	07/28/2005	460 miles	07/28/2013	80460 miles
36/50000 CALIFORNIA EMISSIONS	07/28/2005	460 miles	07/28/2008	50460 miles
84/70000 CALIFORNIA SELECT COMPONENT	07/28/2005	460 miles	07/28/2012	70460 miles
60/60000 POWERTRAIN - U.S.	07/28/2005	460 miles	07/28/2010	60460 miles

CLAIM HISTORY

R.O Date	R.O Number	Type	Labor Operation	Odometer Reading

<http://198.208.187.167/gmvis/main/Summary?languageSelected=EN&VIN=1G1AK12F457...> 5/9/2007

04/19/2007	368220	#	V1556 - 06217 - INSTALL ENERGY ABSORBING DEVICE	25107 miles
03/30/2005	A02543	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	0 miles

CHECK HISTORY INFORMATION**Vehicle Has No Associated Check History Information.**

© 1998-2005 General Motors Corporation. All Rights Reserved.

GM Vehicle Inquiry System Claim History

[Home](#) - [Summary](#) - [Claim History](#) - [Vehicle Build](#) - [Vehicle Component](#) - [Delivery Information](#) - [Dealer Information](#) - [Service Contract](#) - [Warranty Block](#) - [Branded Title](#)

[Help](#)

VIN :	1G1AK12F457
-------	-------------

CLAIM HISTORY

Repair Order Date :		04/19/2007		Repair Order Number :		368220		Odometer Reading :		25107 miles	
Serviced By :	BLAISE ALEXANDER CHEVROLET BUICK PONTIAC 933 BROAD ST MONTROUSEVILLE, PA 17754-2407 (570) 368-8677					Selling Source :		13 - CHEVROLET			
						Site Code :		15009			
						Business Associate Code :		113926			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation	Part	Auth Code	Person Code	Line Total	Comments		
04/24/2007	789	01	#	V1556 - 06217 - INSTALL ENERGY ABSORBING DEVICE	25844441 - ABSORBER	N/A	N/A	\$ 47.68	N		

Repair Order Date :		03/30/2005		Repair Order Number :		A02543		Odometer Reading :		0 miles	
Serviced By :	AVIS CHEVROLET, INC. PO BOX 370 AVIS, PA 17721-0370 (570) 753-3030					Selling Source :		13 - CHEVROLET			
						Site Code :		15099			
						Business Associate Code :		160753			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation	Part	Auth Code	Person Code	Line Total	Comments		
04/05/2005	575	01	1	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	N/A	N/A	N/A	\$ 48.90	N		

CHECK HISTORY

Vehicle Has No Associated Check History.

© 1998-2005 General Motors Corporation. All Rights Reserved.

<http://198.208.187.167/gmvis/main/ClaimHistory?languageSelected=EN&VIN=1G1AK12F...> 5/9/2007

TA000094643

GM Vehicle Inquiry System Vehicle Build

[Home](#) - [Summary](#) - [Claim History](#) - [Vehicle Build](#) - [Vehicle Component](#) - [Delivery Information](#) - [Dealer Information](#) - [Service Contract](#) - [Warranty Block](#) - [Branded Title](#)

[Help](#)

VIN	1G1AK12F457
-----	-------------

VEHICLE BUILD

Merchandising Model :	1AK37 -2005 COBALT 2-DOOR COUPE		
Gross Vehicle Weight Rating :	1660 kg (3660 lb)	Order Number :	JBBDHH
Build Date :	03/30/2005	Build Plant :	157A

OPTION CODES

AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS	AR9 - DELUXE FRONT BUCKET SEAT
C67 - ELECT. FRONT AIR CONDITIONER	DC8
FE1 - SUSPENSION SYSTEM-SOFT RIDE	FR6 - 3.84 FINAL DRIVE TRANSAXLE RATIO
IPB - INTERIOR TRIM DESIGN	J41 - POWER DISC FRONT BRAKES
K64 - 115 AMP GENERATOR	LOD - ASSEMBLY PLANT - LORDSTOWN, OHIO
L61 - 2.2L DOHC 4 CYL ENGINE	MM5 - 5-SPEED MANUAL TRANSMISSION
M86 - MANUAL 5 SPEED TRANSMISSION	NC7 - FEDERAL EMISSIONS OVERRIDE
NE1 - 50-STATE EMISSIONS	NU1 - CALIF EMISSIONS LEV 2
N46 - 4 SPOKE STEERING WHEEL	PG1 - 15" STEEL WHEEL
QTU - P195/60R15 TOURING BW TIRES	SLM - STOCK ORDERS
T43 - REAR DECK-LID SPOILER	UQ4 - BASE SPEAKER SYSTEM
U1C - AM/FM STEREO W/CD AND CLOCK	VM3 - CONSUMER INFORMATION LABEL
V73 - STATEMENT OF VEHICLE CERT.- U.S. /CANADA	1SA - BASE PACKAGE
1SZ - OPTION PACKAGE DISCOUNT	14B - GRAY
141 - GRAY	56U - SUNBURST ORANGE METALLIC
6AR - FRONT SPRING	7AR - FRONT SPRING
8AA - REAR SPRING	9AA - REAR SPRING

© 1998-2005 General Motors Corporation. All Rights Reserved.

<http://198.208.187.167/gmvis/main/VehicleBuild?languageSelected=EN&VIN=1G1AK12F...> 5/9/2007

TA000094644

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM

FAT



Crash Number

AA 500 1

Case Closed

Reportable Crash

Page

(b) (6)

☒ Yes ☐ No☒ Yes ☐ No☐ 1 ☐ 2

Police Agency Data	Incident Number	(b) (6)										Police Agency	68 F 06				Patrol Zone	071		
	Agency Name	PA STATE POLICE										Predict	MILTON IAN 60				Investigation Date (MM-DD-YYYY)	04-30-2007		
Crash Data	Dispatch Time (mi)	0724		Arrival Time (mi)	0730		Investigator	TIE TY C. BREININGER				Badge Number	08281							
	Reviewer	CPL R.W. HENRY										Badge Number	05114		Approval Date (MM-DD-YYYY)	06-13-2007				
Crash Data	County	59		County Name	UNION				Municipality	210		Municipality Name	WHITE OAK				Day of Week	☐ Sun ☐ Thu ☒ Mon ☐ Fri ☐ Tue ☐ Sat ☐ Wed ☐ Unk		
	Crash Date (MM-DD-YYYY)	04-30-2007				Crash Time (mi)	0722		No of Units	01		People	02		Injured	01		Killed*	01	
Loc Type	Workzone (If Yes, Complete Form M, Section 29)	☐ Yes ☒ No		School Bus Related	☐ Yes ☒ No		School Zone Related	☐ Yes ☒ No		Notify PENNDOT Maintenance	☐ Yes ☒ No		Special Location	☐ 00		* See Overlay				
	Intersection Type	☒ Midblock		☐ 4 Way Intersection	☐ "Y" Intersection		☐ Multi-Leg Intersection	☐ Off Ramp		☐ Railroad Crossing		☐ Other								
Principal Road	Route Number	0080		Segment (Optional)			Travel Lanes	02		Speed Limit	65		Street Ending	☐ North ☐ South ☒ East ☐ West ☐ Unknown		House Number (if applicable)			For Mid-block crashes only. Use postal House Number and make sure Principal Roadway Street Name is filled in if using this option	
	Route Signing	☒ Interstate (Not Turnpike)		☐ Turnpike (East/West)	☐ Turnpike Spur		☐ State Highway		☐ County Road		☐ Local Road or Street		☐ Private Road		☐ Other/Unknown					
Intersecting Road	Route Number			Segment (Optional)			Travel Lanes			Speed Limit			Street Ending	☐ North ☐ South ☐ East ☐ West ☐ Unknown						
	Route Signing	☐ Interstate (Not Turnpike)		☐ Turnpike (East/West)	☐ Turnpike Spur		☐ State Highway		☐ County Road		☐ Local Road or Street		☐ Private Road		☐ Other/Unknown					
Distance From Landmark	Use For Mid-Block Crashes											Use Only	☐ North ☐ South ☐ East ☐ West							
	Use For Mid-Block Crashes											Use Only	☐ North ☐ South ☐ East ☐ West							
GPS	Latitude	Degrees: 41		Minutes: 04		Seconds: 38.05		Longitude		Degrees: 77		Minutes: 00		Seconds: 38.60						
	TCD	☒ Not Applicable		☐ Traffic Signal		☐ Yield Sign		☐ Active RR Crossing Controls		☐ Police Officer or Flagman		☐ Other Type TCD		☒ No Controls		☐ Device Functioning Improperly				
Lane Closure	Lane Closed (If "Not Applicable", skip rest of the Lane Closure section)	☐ Not Applicable		☐ Partially		☒ Fully		☐ Unknown		Lane Closure Direction		☐ North ☒ East ☐ South ☐ West								
	Traffic Detained	Yes ☒ No ☐ Unknown ☐		Est. Time Closed		☐ < 30 Min. ☒ 30-60 Min. ☐ 1-3 hrs ☐ 3-6 hrs ☐ 6-9 hrs ☐ > 9 hours ☐ Unknown														

(b) (6)

TA000094645

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM



Crash Number

AA 500 2

(b) (6)

Page:

1

P0702865

Unit Info	☒ Motor Vehicle in Transport ☐ Hit & Run Vehicle ☐ Illegally Parked ☐ Legally Parked ☐ Non-Motorized ☐ Pedestrian ☐ Pedestrian on Skates, in Wheelchair, etc. ☐ Disabled From Previous Crash ☐ Train ☐ Phantom Vehicle <i>(If "Pedestrian" or "Pedestrian on Skates, in Wheelchair, etc.", Complete Form M, Section 28)</i>		Commercial Vehicle ☐ Yes ☒ No <i>(If Yes, Complete Form C)</i>	
	Unit No: 01 First Name: [REDACTED] MI: [REDACTED] Date of Birth (MM-DD-YYYY): [REDACTED] Delete? ☐ Last Name: [REDACTED] Telephone Number: [REDACTED] Address / City / State: [REDACTED] NEW ALEXANDRIA PA Zip: [REDACTED] Driver License Number: [REDACTED] State: PA Class: C			
Vehicle Driver / Pedestrian Information	Alcohol/Drugs Suspected ☒ No ☐ Illegal Drugs ☐ Medication ☐ Alcohol ☐ Alcohol and Drugs ☐ Unknown		Driver or Pedestrian Physical Condition ☒ Apparently Normal ☐ Illegal Drug Use ☐ Fatigue ☐ Medication ☐ Had Been Drinking ☐ Sick ☐ Asleep ☐ Unknown	
	Alcohol Test Type ☒ Test Not Given ☐ Breath ☐ Other ☐ Blood ☐ Urine ☐ Unknown if Test Given		Primary Vehicle Code Violation 3304 Charged? ☐ Yes ☒ No	
	Alcohol Test Results 0 ☐ Test Refused ☐ Unknown Results ☐ Test Given, Contaminated Results		Driver Presence ☒ 1=Driver Operated Vehicle 3=Driver Fled Scene ☐ 2=No Driver 4=Hit and Run 9=Unknown	
	Owner/Driver 01 00=Not Applicable 02=Private Vehicle Not Owned/Leased by Driver 04=State Police Vehicle 07=Municipal Police Veh 09=Federal Gov Veh 01=Private Vehicle Owned/Leased by Driver 03=Rented Vehicle 05=PENNDOT Vehicle 08=Other Municipal Government Vehicle 98=Other 99=Unknown			
Vehicle Information	Same as Driver ☐ Owner First Name: [REDACTED] Owner Last Name or Business Name (If Pedestrian, skip this Section): [REDACTED]		Address / City / State / Zip: [REDACTED] NEW ALEXANDRIA PA [REDACTED] Vehicle Make: CHEVROLET *Make Code: 20	
	VIN: 1G1AK12F457 Model Year: 2005 Vehicle Model: CORAL		License Plate: [REDACTED] Reg. State: PA Est. Speed: 075 Vehicle Towed: ☒ Yes ☐ No Towed By: KELLY'S GARAGE	
	Insurance ☒ Yes ☐ No ☐ Unknown Insurance Company: NATIONWIDE Policy No: [REDACTED]			
	Trailing Unit No. of Trailing Units: 0 Type Unit: [REDACTED]		1=Towing Pass. Veh 4=Mobile/Modular Home 7=Semi-Trailer Tag No: [REDACTED] Tag Year: [REDACTED] Tag St: [REDACTED] 2=Towing Truck 5=Camper 8=Other 3=Towing Utility Trailer 6=Full Trailer 9=Unknown	
	Direction of Travel E *Vehicle Position: 03 *Movement: C1 *See Overlay		Special Usage 00 12=Commercial Passenger Carrier 00=Not-Applicable 01=Fire Veh 13=Taxi 02=Ambulance 21=Tractor Trailer 03=Police 22=Twin Trailer 08=Other Emergency Vehicle 23=Triple Trailer 11=Public Transport 31=Modified Veh 99=Unknown	
	Vehicle Color 09 06=Yellow 07=Silver 08=Gold 09=Brown 10=Orange 11=Purple 12=Other 05=Black 99=Unknown		Vehicle Type 01 01=Automobile 02=Motorcycle 03=Bus 04=Small Truck <i>(If "02", Complete Form M, Section 26)</i> <i>(If "20" or "21", Complete Form M, Section 27)</i> 05=Large Truck 06=SUV 07=Van 10=Snowmobile 11=Farm Equip 12=Construction Equip 13=ATV 18=Other Type Spec Veh 19=Unk. Type Spec Veh 20=Unicycle, Bicycle, Tricycle 21=Other Pedalcycle 22=Horse & Buggy 23=Horse & Rider 24=Train 25=Trolley 98=Other 99=Unknown	
Initial Impact Point 07 00=Non-Collision 01-12=Clock Points 14=Undercarriage 15=Towed Unit		Damage Indicator 3 0=None 2=Functional 1=Minor 3=Disabling		
		Gradient 1 1=Level 2=Hill 3=Downhill 4=Bottom of Hill 5=Top of Hill		
		Road Alignment 1 1=Straight 2=Curved		

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM



Crash Number

(b) (6)

AA 500 3

Police Use Only

(b) (6)

Page

03

People Information

A Person Type:
1=Driver
2=Passenger
7=Pedestrian
8=Other
9=Unknown

B Sex:
F=Female
M=Male
U=Unknown

C Injury Severity:
0=Not Injured
1=Killed
2=Major Injury
3=Moderate Injury
4=Minor Injury
8=Injury, Unk Severity
9=Unknown if Injury

D Seat Position:
00=Not A Passenger/Occupant
01=Driver - All Vehicles
02=Front Seat Middle Position
03=Front Seat Right Side
04=Second Row - Left Side Or Motorcycle Passenger
05=Second Row - Middle Position
06=Second Row - Right Side
07=Third Row Or Greater - Left Side
08=Third Row Or Greater - Middle Position
09=Third Row Or Greater - Right Side
10=Sleeper Section of Truckcab
11=In Other Enclosed Passenger Or Cargo Area
12=In Open Area (Back Of Pickup, Etc.)
13=Trailing Unit
14=Riding On Vehicle Exterior
15=Bus Passenger
98=Other
99=Unknown

E Safety Equipment One:
00=None Used / Not Applicable
01=Shoulder Belt Used
02=Lap Belt Used
03=Lap And Shoulder Belt Used
04=Child Safety Seat Used
05=Motorcycle Helmet Used
06=Bicycle Helmet Used
10=Safety Belt Used Improperly
11=Child Safety Seat Used Improperly
12=Helmet Used Improperly
90=Restraint Used, Type Unknown
99=Unknown

F Safety Equipment Two:
00=None Used / Not Applicable
01=Front Air Bag Deployed (For This Seat)
02=Side Air Bag Deployed (For This Seat)
03=Other Type Air Bag Deployed
04=Multiple Air Bags Deployed
05=Motorcycle Eye Protection
06=Bicyclist Wearing Elbow/Knee Pads
10=Air Bag Not Deployed, Switch On
11=Air Bag Not Deployed, Switch Off
12=Air Bag Not Deployed, Unk Switch Setting
13=Air Bag Removed (Prior To Crash)
19=Unknown If Air Bag Deployed
99=Unknown

G Ejection:
0=Not Applicable
1=Not Ejected
2=Totally Ejected
3=Partially Ejected
9=Unknown

H Ejection Path:
0=Not Ejected / Not Applicable
1=Through Side Door Opening
2=Through Side Window
3=Through Windshield
4=Through Back Door
5=Through Back Door Tailgate Opening
6=Through Roof Opening (Sunroof/Convertible Top Down)
7=Through Roof Opening (Convertible Top Up)
9=Unknown

I Extrication:
0=Not Applicable
1=Not Extricated
2=Extricated By Mechanical Means
3=Freely By Non - Mechanical Means
8=Other
9=Unknown

EMS Agency: WHITE DEER FIRE RESCUE

Medical Facility: CRISINGER MEDICAL CENTER

Unit No: 01 Person No: 01 Delete? ☐ Date of Birth (MM-DD-YYYY): 01-01-01 A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☒ Yes ☐ No

Unit No: 01 Person No: 02 Delete? ☐ Date of Birth (MM-DD-YYYY): 02-04-03 A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☒ Yes ☐ No

Unit No: ☐ Person No: ☐ Delete? ☐ Date of Birth (MM-DD-YYYY): ☐-☐-☐ A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☐ Yes ☐ No

Unit No: ☐ Person No: ☐ Delete? ☐ Date of Birth (MM-DD-YYYY): ☐-☐-☐ A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☐ Yes ☐ No

Unit No: ☐ Person No: ☐ Delete? ☐ Date of Birth (MM-DD-YYYY): ☐-☐-☐ A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☐ Yes ☐ No

Unit No: ☐ Person No: ☐ Delete? ☐ Date of Birth (MM-DD-YYYY): ☐-☐-☐ A B C D E F G H I

Name / Address / Phone: ☐ Same as Operator EMS Transport: ☐ Yes ☐ No

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM

Crash Number

AA 500 4

(b) (6)

Page

C 4

(b) (6)

General Crash Information		Crash Description		0=Non-Collision 1=Rear End		2=Head On 3=Rear (p Rear Backing)		4=Angle 5=Slideswipe (Same Direction)		6=Slideswipe (Opposite Direction) 7=Hit Fixed Object		8=Hit Pedestrian 9=Other/Unknown	
Relation to Roadway		4		1=On Travel Lanes 2=Shoulder		3=Median 4=Roadside		5=Outside Trafficway 6=In Parking Lane		7=Gore (Ramp Intersection) 8=Unknown			
Illumination		1		1=Daylight 2=Dark - No Street Lights		3=Dark - Street Lights 4=Dusk		5=Dawn 6=Dark - Unknown Roadway Lighting		8=Other			
Weather Conditions		1		1=No Adverse Conditions 2=Rain		3=Sleet (Hail) 4=Snow		5=Fog 6=Rain & Fog		7=Sleet & Fog 8=Other		9=Unknown	
Road Surface Conditions		1		0=Dry 1=Wet		2=Sand, Mud, Dirt, Oil 3=Snow Covered		4=Slush 5=Ice		6=Ice Patches 7=Water - Standing or Moving		8=Other	

Unit(s) Event Information		Harm Event L/R Most?		Utility Pole Number	
Unit No	1	2	2		
	0	1	5	0	6
Please Put Events in Sequential Order	3				
	4				

Unit(s) Event Information		Harm Event L/R Most?		Utility Pole Number	
Unit No	1				
	2				
Please Put Events in Sequential Order	3				
	4				

First Harmful Event in the Crash		Unit No		Harm Event		Most Harmful Event in the Crash		Unit No		Harm Event	
	0	1	2	2			0	1	5	0	

Do not repeat this information on multiple pages.

Environmental / Roadway Potential Factors (E/R)		1		0		2		3	
00=None	11=Slippery Road Conditions (Ice/Snow)								
01=Windy Conditions	12=Substance On Roadway								
02=Sudden Weather Conditions	13=Potholes								
03=Other Weather Conditions	14=Broken Or Cracked Pavement								
04=Deer In Roadway	15=ICD Obstructed								
05=Obstacle On Roadway	16=Soft Shoulder Or Shoulder Drop Off								
06=Other Animal In Roadway	28=Other Roadway Factor								
07=Glare	29=Other Environmental Factor								
08=Work Zone Related	99=Unknown								

Possible Vehicle Failures (V)		12=Wipers		13=Driver Seating/Control		14=Body, Doors, Hood, Etc		15=Trailer Hitch		16=Wheels		17=Airbags		18=Trailer Overloaded		19=Unsecured/Shifted Trailer Load		20=Improper Towing		21=Obstructed Windshield		99=Unknown	
00=None	06=Exhaust																						
01=Tires	07=Headlights																						
02=Brake System	08=Signal Lights																						
03=Steering System	09=Other Lights																						
04=Suspension	10=Horn																						
05=Power Train	11=Mirrors																						

Unit No		1		0		2		3	
	0	1	0	0	2				

Unit No		1		2		3		4	

Indicated Prime Factor		Unit No		Factor Code	
Do not repeat this information on multiple pages.		0		1	
E / R	V	D	P		

If EIR is the Prime Factor

Driver Action (D)		17=Careless Or Illegal Backing On Roadway		18=Driving On The Wrong Side Of Road		19=Making Improper Entrance To Highway		20=Making Improper Exit From Highway		21=Careless Parking/Unparking		22=Over/Under Compensation At Curve		23=Speeding		24=Driving Too Fast For Conditions		25=Failure To Maintain Proper Speed		26=Driver Fleeing Police (Pchase)		27=Driver Inexperienced		28=Failure To Use Specialized Equip		92=Affected By Physical Condition		98=Other Improper Driving Actions		99=Unknown	
00=No Contributing Action	01=Driver Was Distracted																														
02=Driving Using Hand Held Phone	03=Driving Using Hands Free Phone																														
04=Making Illegal U-Turn	05=Improper/Careless Turning																														
06=Turning From Wrong Lane	07=Proceeding W/O Clearance After Stop																														
08=Running Stop Sign	09=Running Red Light																														
10=Failure To Respond To Other Traffic Control Device	11=Tailgating																														
12=Sudden Slowing/Stopping	13=Illegally Stopped On Road																														
14=Careless Passing Or Lane Change	15=Passing In No Passing Zone																														
16=Driving The Wrong Way On 1-Way Street																															

Unit No		1		9		8		2		2		3		4	
	0	1	9	8	2	2	3								

Unit No		1		2		3		4	

Pedestrian Action (P)		03=Working		04=Pushing Vehicle		05=Approaching Or Leaving Vehicle		06=Working On Vehicle		07=Standing		98=Other		99=Unknown	
00=None	01=Entering Or Crossing At Specified Location														
02=Walking, Running, Jogging, Or Playing															

Unit No		1		2		3		4	

Unit No		1		2		3		4	

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM

AA 500 F

Police File No.

(b) (6)

Page

05

☒ New

☐ Change/
Continuation



Crash Number

(b) (6)

Road Surface Type

- ☐ Concrete ☐ Brick or Block ☐ Dirt
☒ Blacktop ☐ Slag, Gravel or Stone ☐ Other
☐ Unknown

Special Jurisdiction

- ☒ No Special Jurisdiction ☐ Military ☐ Other Federal Sites
☐ National Park ☐ Indian Reservation ☐ Other
☐ College/University Campus ☐ Unknown

Please complete Unit Information for each unit involved in a fatal crash. Do not repeat the information in the fields above on multiple pages.

Unit Information

Unit No

01

Driver Restrictions Compliance

- ☐ No Restrictions/Not Applicable ☐ Restrictions Complied With ☐ Not a Pennsylvania Driver
☐ Restrictions Not Complied With ☐ Unknown Compliance
☒ Compliance Unknown

Driver Endorsement Compliance

- ☒ None Required ☐ Required - Complied With ☐ Not a Pennsylvania Driver
☐ Required - Non Compliance ☐ Unknown Compliance
☐ Required - Compliance Unknown

Driver License Compliance

- ☐ Not Licensed ☐ Not Required for Vehicle Class ☐ Unk If CDL or CDL Required
☐ No Valid License for Class ☐ Not a Pennsylvania Driver
☒ Valid License for Class ☐ Unknown

Drug Test Type

- ☒ None ☐ Blood ☐ Other
☐ Urine ☐ Unknown If Test Given

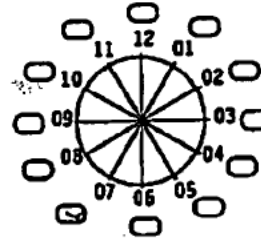
Drug Test Results - (Up to Four Results)

- 0 = No Test Given
1 = No Drug Reported
2 = Marijuana
3 = Cocaine
4 = Opiates
5 = Amphetamines
6 = PCP
8 = Other
9 = Unknown Test Results

0 1 2 3 4 5 6 7 8 9

Principle Impact Point

- ☐ Non-Collision
☐ Top
☐ Undercarriage
☐ Towed Unit
☐ Unknown



Avoidance Maneuver

- ☐ No Avoidance Maneuver ☐ Braking - Other Evidence ☐ Other Avoidance Maneuver
☐ Braking - Skid Marks Evident ☐ Steering - Evidence or Driver Stated ☐ Inconclusive
☐ Braking - No Skid Marks, Driver Stated ☒ Steering and Braking Evidence or Stated ☐ Unknown

Under Ride Indicator

- ☒ No Underride or Override ☐ Underride, No Compartment Intrusion ☐ Override, Other Vehicle
☐ Underride, Compartment Intrusion ☐ Underride, Compartment Intrusion Unknown ☐ Unknown If Underride or Override

Emergency Use

- ☒ Not in Emergency Use ☐ Lights Flashing ☐ Both Lights and Siren
☐ Siren Sounding ☐ Unknown

Unit Information

Unit No

01

Driver Restrictions Compliance

- ☐ No Restrictions/Not Applicable ☐ Restrictions Complied With ☐ Not a Pennsylvania Driver
☐ Restrictions Not Complied With ☐ Unknown Compliance
☐ Compliance Unknown

Driver Endorsement Compliance

- ☐ None Required ☐ Required - Complied With ☐ Not a Pennsylvania Driver
☐ Required - Non Compliance ☐ Unknown Compliance
☐ Required - Compliance Unknown

Driver License Compliance

- ☐ Not Licensed ☐ Not Required for Vehicle Class ☐ Unk If CDL or CDL Required
☐ No Valid License for Class ☐ Not a Pennsylvania Driver
☐ Valid License for Class ☐ Unknown

Drug Test Type

- ☐ None ☐ Blood ☐ Other
☐ Urine ☐ Unknown If Test Given

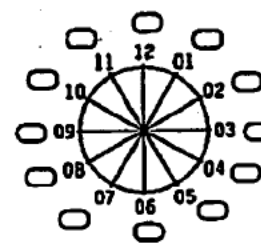
Drug Test Results - (Up to Four Results)

- 0 = No Test Given
1 = No Drug Reported
2 = Marijuana
3 = Cocaine
4 = Opiates
5 = Amphetamines
6 = PCP
8 = Other
9 = Unknown Test Results

0 1 2 3 4 5 6 7 8 9

Principle Impact Point

- ☐ Non-Collision
☐ Top
☐ Undercarriage
☐ Towed Unit
☐ Unknown



Avoidance Maneuver

- ☐ No Avoidance Maneuver ☐ Braking - Other Evidence ☐ Other Avoidance Maneuver
☐ Braking - Skid Marks Evident ☐ Steering - Evidence or Driver Stated ☐ Inconclusive
☐ Braking - No Skid Marks, Driver Stated ☐ Steering and Braking Evidence or Stated ☐ Unknown

Under Ride Indicator

- ☐ No Underride or Override ☐ Underride, No Compartment Intrusion ☐ Override, Other Vehicle
☐ Underride, Compartment Intrusion ☐ Underride, Compartment Intrusion Unknown ☐ Unknown If Underride or Override

Emergency Use

- ☐ Not in Emergency Use ☐ Lights Flashing ☐ Both Lights and Siren
☐ Siren Sounding ☐ Unknown

TA000094649

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM



Crash Number

AA 500 5

Police Use Only

(b) (6)

Page

05

(b) (6)

Diagram

SEE ATTACHED DIAGRAM

Witness Name	Address	Phone
1 [REDACTED]	[REDACTED] HALL PA [REDACTED]	[REDACTED]
2		

Narrative and additional witnesses:

Accident Investigation Notification Issued? ☒ Property Damage ☐

Witness and Narrative

This collision occurred as Unit #1 was traveling east on Interstate 80 in the right lane. Unit #1 traveled into the right berm and then swerved left traveling back onto the roadway traversing both lanes while beginning a counter clockwise spin. Unit #1 traveled off the left berm, and struck an embankment with Unit #1's rear. Unit #1 traveled partially onto the embankment and continued to travel east on it's wheels until both driver's side tires became flat causing Unit #1 to begin rolling. Unit #1 then began to roll across Unit #1's driver's side and continued rolling approximately three revolutions along the embankment. While rolling, Operator #1 and Passenger #1 were both ejected from the vehicle. Unit #1 came to rest on its wheels facing southwest just left of the roadway along the embankment. Operator #1 came to rest on the dotted line between the east bound lanes face down with his head facing west. Passenger #1 came to rest along the driver's side rear tire of Unit #1 and then walked up the embankment.

Physical evidence on the roadway consisted of approximately 18 feet of faint black yaw marks leading from the right berm of the roadway and traveling into the right lane. The aforementioned tire marks were created by Unit #1's passenger side tires. Approximately 87 feet of tire marks, located east of the previously mentioned tire marks, were observed leading from the left lane, across the left berm, and into a gravel area ending at the initial point of impact with the embankment. The initial point of impact was a gouge mark in the embankment. Unit #1 traveled approximately 255 feet along the embankment from the point of impact until Unit #1's point of rest. Tire marks, gouge marks, and environmental debris were observed on the embankment and berm leading from the initial point of impact and ending at Unit #1's point of rest. Operator #1's resting point was approximately 63 feet from Unit #1's point of rest.

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM



Crash Number

AA 500 N

(b) (6)

Page 7

☒ New

☐ Change/
Continuation

(b) (6)

Narrative and additional witnesses:

Physical evidence consisted of the damage to Unit #1. Unit #1's driver's side mirror was observed on the berm in the area of the first gouge mark in the embankment. Unit #1's passenger side mirror was observed on the berm just east of the driver's side mirror in the area of the second gouge mark in the embankment. Glass was observed on the embankment and berm as result of Unit #1 rolling.

On 04/30/07 at approx 0915 hrs, Passenger #1 was interviewed at the scene. Passenger #1 stated he was sleeping when the crash occurred and awoke in the air after being ejected. Passenger #1 later stated he recalled Operator #1 yelling his name prior to Passenger #1 being ejected. Passenger #1 did not know how the collision occurred.

Passenger #1 stated he and Operator #1 were traveling from their residence in New Alexandria to their school at Penn Tech in Williamsport.

Operator #1 was unable to be interviewed due to severe injuries received in the collision.

TPR Scott DAVIS of PSP Milton interviewed two witnesses at the scene including an initial interview with Witness #1. TPR DAVIS related a witness stated a large piece of concrete was in the right lane of the roadway and may have contributed to this collision. The piece of concrete was located on the right berm which measured approx 1 foot in length and approx 6 inches wide. No evidence was observed suggesting the concrete was in the roadway at the time of this collision. In addition, the piece of concrete was approx 200 feet east of the beginning of the yaw marks on the right berm.

On 04/30/07 at 2138 hrs, the Montour County Coroner, Scott LYNN, contacted PSP Milton and advised Operator #1 expired as result of injuries received in this collision. The time of death was 2046 hrs and the cause of death was "blunt force head injury".

On 5/1/07 at approx 1700 hrs, I traveled to Kelly's Garage and inspected Unit #1. All four tires on Unit #1 were of the same size, type and tread pattern. The brand of tires are Falken Zlex ZE512 and the size was 195-60-R15. Both driver's side tires were flat. Unit #1 displayed a valid inspection sticker expiring at the end of June 2007. The front seatbelts were observed to be functional but in the locked position as result of this collision. The damage to Unit #1 was further documented with digital photographs.

On 5/1/07 at approx 2058 hrs, I re-interviewed Witness #1 by telephone. Witness #1 stated he did not see Unit #1's initial loss of control but observed Unit #1 begin spinning counterclockwise from the right eastbound lane. Witness #1 stated Unit #1 then traveled off the left side of the roadway and impacted an embankment with it's rear before rolling multiple times. Witness #1 stated he observed the occupants of Unit #1 at their respective point of rest. At the time of the collision the Witness #1 stated his vehicle was in the left lane and Witness #1 was completing a pass of a commercial vehicle. Witness #1 stated Unit #1 was in the right lane prior to loss of control. When asked, Witness #1 stated the previously mentioned piece of concrete was not in the roadway at the time of this collision.

Cell messages were sent notifying of road closure and again when the road was re-opened, see attached messages.

Operator #1's driver license is believed to have been transported with Operator #1.

Auxiliary Witness and Narrative

Report # (b) (6)

NOT TO SCALE

F06-0934386
68F06
April 30, 2007
Arrival Time: 0730 hrs

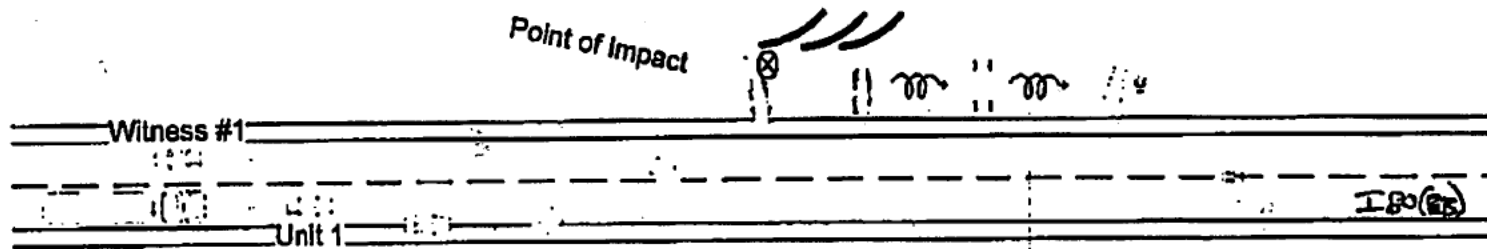
Embankment

Unit #1 final rest

Passenger #1 final rest



Point of Impact



Rollover

Exit 200 approx 2.4 miles

Operator #1 final rest

COMMONWEALTH OF PENNSYLVANIA
POLICE CRASH REPORTING FORM

AA 500 N

Police Use Only
PSP - 0934386

Page

03

☒ New

☐ Change/
Continuation



Crash Number

P 0 7 0 2 P 6 5

Narrative and additional witnesses:

On 5/2/07, a fatal crash entry was entered on the Fatal Crash System as required. A copy of this entry will be filed in the crash attachment file.

Assisted at the scene by TPR Scott DAVIS, TPR Chad RARIG, and TPR Bradley TIMBRELL.

Digital photographs were taken at the scene and are filed in the crash attachment file at PSP Milton. In addition, digital photographs of Unit #1 taken at Kelly's Garage will also be filed in the crash attachment file at PSP Milton.

Assisted at the scene by TPR's Scott DAVIS, Chad RARIG, and Bradley TIMBRELL.

An initial News release was prepared and posted on the date of this crash. An updated News Release was prepared and posted reporting the death of Operator #1. Both News Releases will be filed in the crash attachment file at PSP Milton.

This investigation will remain open pending the following:

1. Supplemental from TPR Scott DAVIS documenting witness interviews
2. Copy of Death Certificate and Coroner's report

Auxiliary Witness and Narrative

SN RC MON411 MIL491,

FILE 3

PAPSP5900

SP MILTON

INTERSTATE 80 EAST BOUND @ THE 202.6 IS CLOSED DUE TO A MOTOR VEHICLE CRASH
WITH INJURY AND EJECTION. WE WILL LET YOU KNOW WHEN ROADWAY IS REOPENED.

AUTH SP MILTON SGT WALTER WITKOWSKI

CORK

MSG RCVD 53059 APR 30, 2007 07:36:31

SAN: BZ0JTBWC6HZF

SN RC MON411 MIL491,

SP MILTON FILE 3

PAPSP5900

BOTH LANES EASTBOUND 202.6 ARE NOW OPEN

THANKS FOR ALL ASSISTANCE

AUTH/OIC SP MILTON SGT WALTER WITKOWSKI

CORK

MSG RCVD 53065 APR 30, 2007 09:00:45

SAN: BZ0JTBWC7QJ8

Fatal Crash System

Query by Incident Number

Troop: F

Station: 06

Incident: (b) (6)

Fatalities: 1

Fatalities Not wearing Seatbelt: 1

Fatalities Not wearing Helmets: 0

Crash Date: 4/30/2007 Crash Time: 0722

County: Union

Municipality: White Deer Twp

Location: Interstate 80, EB, MP202.4

Crash Description: Hit Fixed Object

Number of Units Involved: 1

Intersection Type: None Selected

School Zone N

Construction Zone: N

Comments:

CARS: None Selected

Record Entered By: TBRINING

Record Entered Date: 5/2/2007 3:16:00 PM

Record Updated By: TBRINING

Record Updated Date: 5/2/2007 3:16:00 PM

Causal Factors

Environmental Conditions:

Harmful Event:

Illumination:

Roadway Conditions:

Unit Failure:

None Selected
Other Improper Driving Actions
Daylight
Wet
None Selected

Roadway Data

Primary:

Secondary:

65	Interstate (Not Turnpike)
0	None Selected

Driver Information:

1	Auto	M	20	N/A